



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35582599

Date: JAN. 23, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen. See Immigration and Nationality Act (the Act) section 204(a)(1)(A)(iii), 8 U.S.C. § 1154(a)(1)(A)(iii).

The Director of the Vermont Service Center denied the Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident) (VAWA petition), concluding that the record did not establish that the Petitioner had a qualifying relationship with a U.S. citizen spouse and her corresponding eligibility to be classified as an immediate relative under section 201(b)(2)(A)(i) of the Act. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

A petitioner who is the spouse of a U.S. citizen may self-petition for immigrant classification under VAWA if the petitioner demonstrates that they entered into the marriage with the U.S. citizen spouse in good faith and that during the marriage, the petitioner or their child was battered or subjected to extreme cruelty perpetrated by the spouse. Section 204(a)(1)(A)(iii)(I) of the Act; 8 C.F.R. § 204.2(c)(1). In addition, a petitioner must show that they are eligible to be classified as an immediate relative under section 201(b)(2)(A)(i) of the Act, resided with the abusive spouse, and are a person of good moral character. Section 204(a)(1)(A)(iii)(II) of the Act; 8 C.F.R. § 204.2(c)(1). Specifically, a petitioner must submit evidence of the relationship in the form of a marriage certificate and proof of the termination of all prior marriages for the petitioner and the abuser. 8 C.F.R. §§ 204.2(b)(2), (c)(2)(ii). While we must consider any credible evidence relevant to the VAWA petition, we determine, in our sole discretion, what evidence is credible and the weight to give to such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

The Petitioner, a native and citizen of Nigeria, entered the United States in April 2019 in B-2 nonimmigrant status and married A-H-, a U.S. citizen, in [] 2019.¹ She then filed a VAWA petition in December 2020 based upon a claim of abuse by A-H-. On this VAWA petition, the Petitioner stated

¹ We use initials to protect the privacy of the individual.

that she had been married previously to I-O-, and that this marriage had ended in divorce. The Director issued a request for evidence (RFE) demonstrating the termination of this prior marriage, noting inconsistencies on the *Consent Judgement Order* from the Customary Court, Choba of Rivers State of Nigeria (customary court) provided with the VAWA petition.

With her RFE response, the Petitioner submitted an affidavit from her counsel in Nigeria, a *Confirmation of Consent Judgement* signed by the Assistant Registrar of the customary court, and additional documentation pertaining to the divorce between the Petitioner and I-O including the *Terms of Settlement and Resumed Proceedings*. In denying the VAWA petition, the Director noted that this divorce documentation contained a suit. no., an identification factor normally associated with a Federal High Court rather than a customary court, and that generally the identification factor ends in the year that the divorce suit was filed, in the instant case 2018, inconsistent with the suit no. ending in 2014 on this documentation. The Director also observed that the *Terms of Settlement* provided by the Petitioner included a suit. no. ending in 2014 in the header of the document and a suit no. ending in 2018 in the body of the document. The Director advised that because of these discrepancies, they were unable to determine whether the Petitioner's marriage to I-O- was legally terminated, and therefore that she was legally able to marry A-H-. Accordingly, the Director denied the petition, concluding that the Petitioner had not shown a qualifying relationship with her U.S. citizen spouse and her corresponding eligibility to be classified as an immediate relative under section 201(b)(2)(A)(i) of the Act.

On appeal, the Petitioner asserts that her marriage with I-O- was legally terminated prior to her marriage to A-H-, that she was legally able to wed A-H-, and therefore that she had a qualifying relationship to a U.S. citizen spouse. The Petitioner first offers a personal statement on appeal explaining that she has personal knowledge that I-O- has remarried, that she and I-O- are both Christian and do not believe in polygamy, and that polygamy is illegal in Nigeria. The Petitioner asserts that this shows that her marriage to I-O- was legally terminated prior to I-O-'s subsequent marriage. To support her claims the Petitioner provides undated photographs and states that they are I-O-'s second marriage, new wife, and child. However, the issue here is whether the marriage between the Petitioner and I-O- was legally terminated prior to her marriage to A-H- in [] 2019. As the photographs are undated, they are of little probative value in establishing when or whether the Petitioner's marriage to I-O- was legally terminated. Moreover, the Petitioner's statement and photographs do not sufficiently address the inconsistencies in the divorce documentation identified by the Director.

The Petitioner further contends on appeal that the Director's decision erred in stating that documentation from customary courts would not include a suit no., and further using this as an example of a discrepancy in the record. While this may address the Director's conclusion to the contrary, it remains insufficient to establish the Petitioner's qualifying relationship with A-H- as it does not resolve the inconsistencies in the record discussed below between the divorce documentation submitted first with the initial VAWA petition, then with her RFE response, and finally on appeal.

Upon de novo review of the record, we note that on the Petitioner's Form I-485, Application to Register Permanent Residence or Adjustment Status, (Form I-485) filed concurrently with the instant VAWA petition, the Petitioner reported that her marriage to I-O- ended on [] 2019. However, the *Consent Judgement Order* (suit. no. ending in /2014) dissolving the customary marriage between

the Petitioner and I-O-submitted with her VAWA petition was issued by the customary court in [] 2019.

With her RFE response, the Petitioner submitted an *Affidavit of Confirmation* from her counsel in Nigeria. In this affidavit, the Petitioner's counsel swore that in February 2024, at the direction of the Petitioner, she retrieved the *Terms of Settlement* and *Resumed Proceedings* between the Petitioner and I-O- with a suit no. ending in 2014. The Petitioner provided this documentation of the divorce proceedings with her RFE response along with a *Confirmation of Consent/Judgement* in which the Assistant Registrar of the customary court confirmed the authenticity of "this consent judgement." However, this documentation introduced new inconsistencies into the record. In the *Resumed Proceedings*, the customary court adopted the *Terms of Settlement* dated [] 2019 and dissolved the customary marriage between the Petitioner and I-O- on [] 2019, discrepant with the date of divorce reported by the Petitioner on her Form I-485. Further, the *Terms of Settlement* considered by the customary court were filed in [] 2019, inconsistent with the *Consent Judgement Order* initially submitted by the Petitioner indicating that the customary court considered the *Terms of Settlement* filed in [] 2019 in dissolving the customary marriage. Further, as the Director noted, the *Terms of Settlement* provided with the RFE response reference a suit no. ending in 2014 in the header and one ending in 2018 in the body of the document.

On appeal, the Petitioner provides copies of a *Petition for a Dissolution of Marriage to the Above Named, Ordinary Summons* and *Notice of Petition Summons*, a second *Consent Judgement Order*, and a second *Confirmation of Consent/Judgement*, and explains that errors in the previously submitted documentation have now been corrected, as reflected in this new documentation. Each of these documents now references a suit. no. ending in 2018. We acknowledge that in the second *Confirmation of Consent/Judgement* the same Assistant Registrar for the customary court now states that the correct suit. no. for the divorce proceedings between the Petitioner and I-O- ends in 2018 and that "every error in the suit no. should be considered a typographical error from the process clerk." However, the second *Consent Judgement Order* now indicates that the customary court considered terms of settlement filed on [] 2019 when dissolving the customary marriage between I-O- and the Petitioner. This date remains inconsistent with the *Consent Judgement Order* that the Petitioner initially submitted with her VAWA petition as well as with the date of divorce that the Petitioner indicated on her Form I-485.² Due to the inconsistencies discussed above, the Petitioner has not met her burden in establishing that her marriage to I-O- was legally terminated. *See Matter of Chawathe*, 25 I&N Dec. 369.

Having considered the record in its entirety we conclude that the Petitioner has not established the legal termination of her prior marriage, as required. 8 C.F.R. § 204.2(c)(2)(ii). The Petitioner, therefore, has not established, by a preponderance of the evidence, a qualifying marital relationship with a U.S. citizen spouse and her corresponding eligibility to be classified as an immediate relative.

ORDER: The appeal is dismissed.

² We note that the header of the *Petition for a Dissolution of Marriage* and the *Notice of Petition Summons* appear to include a suit. no. beginning in MCC, whereas the remainder of the documents in the record, including the *Ordinary Summons*, reference a suit. no. beginning in CCC.